

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #9	CCRB Case #: 201508770	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 06/11/2015 11:00 PM	Location of Incident: East Tremont Avenue & Dogwood Drive	Precinct: 49	18 Mo. SOL 12/11/2016	EO SOL 12/11/2016	
Date/Time CV Reported Thu, 10/15/2015 1:16 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 10/15/2015 1:16 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joshua Marte	04923	951971	049 PCT
2. An officer			
3. Officers			

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: Officers stopped § 87(2)(b)	
B.POM Joshua Marte	Abuse: Police Officer Joshua Marte stopped § 87(2)(b)	
C. An officer	Abuse: An officer drew his gun.	
D.POM Joshua Marte	Abuse: Police Officer Joshua Marte frisked § 87(2)(b)	
E.POM Joshua Marte	Abuse: Police Officer Joshua Marte searched § 87(2)(b)	
F.POM Joshua Marte	Abuse: Police Officer Joshua Marte refused to provide his name to § 87(2)(b)	
G. Officers	Abuse: Officers refused to provide thier names to § 87(2)(b)	
§ 87(4-b), § 87(2)(g)		

Case Summary

On October 15, 2015, § 87(2)(b) filed this complaint in person at the CCRB.

On June 11, 2015, at approximately 11:00 p.m., § 87(2)(b) was smoking a cigarette while waiting at a bus stop on East Tremont Avenue and Dogwood Drive in the Bronx cigarette when three officers approached him in an unmarked police vehicle. An officer told § 87(2)(b) to put his hands up. § 87(2)(b) complied and dropped his cigarette. Police Officer Joshua Marte of the 49th Precinct and two unidentified officers exited the police vehicle, approached § 87(2)(b) and asked him what he was doing (**Allegations A and B**). The officer who told § 87(2)(b) to put his hands up drew his gun and pointed it towards the ground (**Allegation C**). PO Marte frisked § 87(2)(b) and searched his pockets and wallet (**Allegations D and E**). The officers stated that they smelled marijuana and searched the immediate area for approximately 30 minutes. During this time, six additional unidentified officers arrived at the scene. An officer in a white uniformed shirt told § 87(2)(b) that someone had been breaking into cars in the area. PO Marte issued § 87(2)(b) a summons for § 87(2)(b). § 87(2)(b) allegedly asked the officers collectively for their names but no officer responded (**Allegations F and G**). The officers then left the scene.

§ 87(2)(g) This case was forwarded to ADR on January 6, 2016 and was returned to the undersigned on March 14, 2016 because PO Marte rejected mediation. There is no video footage in this case.

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) during his interview at the CCRB on October 15, 2015. § 87(2)(b) accepted mediation § 87(2)(b). This case was forwarded to ADR on January 6, 2016 and was returned to the undersigned on March 14, 2016 because PO Marte rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of April 11, 2016, § 87(2)(b) has not filed a notice of claim in regards to this incident (Board Review 02).

Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) (Board Review 03).
 - § 87(2)(b)
- PO Joshua Marte has been a member of the NYPD for 4 years and has 2 prior CCRB complaints (Board Review 04).
 - § 87(2)(b)
 - In case number 201508829, PO Marte allegedly stopped and searched an individual's vehicle. This case was closed as Complainant Uncooperative.

Potential Issues

- On December 23, 2015 and December 28, 2015, calls were made to § 87(2)(b) in an attempt to schedule him for a photo viewing, but § 87(2)(b)'s number was not in service. On December 23, 2015 and December 28, 2015, calls were made to § 87(2)(b)'s fiancée, § 87(2)(b), in an attempt to reach § 87(2)(b) and voicemails were left on both of these calls. On February 3, 2016, § 87(2)(b) left a voicemail stating that he was in Senegal and that he would be returning to the United States in two weeks. Calls were made to § 87(2)(b) on April 5, 2016 and April 18, 2016. On both of these calls, an automated message indicated that § 87(2)(b) was either unavailable or has travelled outside of his carrier's coverage area. There was no active voicemail capability on either of these calls. Letters were sent to § 87(2)(b) on December 28, 2015, April 5, 2016, and April 18, 2016. These letters have not been returned by the United States Postal Service. E-mails were successfully sent to § 87(2)(b) on December 28, 2015, April 5, 2016, and April 18, 2016. To date, § 87(2)(b) has not contacted the undersigned to schedule a photo viewing.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) described the officer who stopped him and drew his gun as a 35-year-old, 5'9" to 6' tall, overweight white male who was either bald or had blonde hair and was wearing a blue uniform. He described the third officer in this unmarked black Ford sedan as a 32-year-old, 5'9" to 6' tall black male with an average build, black hair, black eyes, and a blue uniform. § 87(2)(b) stated that two marked police vehicles later arrived at the scene. The first contained two white males in blue uniforms. The second contained a 34-year-old, 5'8" tall black male with an average build, black hair, black eyes, and a white uniform and a 30-year-old, 5'8" to 5'9" tall chubby Hispanic male in a blue uniform. A fourth police vehicle, an unmarked blue or black sedan containing two white male officers in civilian attire, was also present at the scene.
- The Event Summaries from the 49th and the 43rd Precincts (Board Review 05, 06) reveal that no event was generated at the incident location, which lies on the border of these two precincts. No Stop, Question, and Frisk Report was prepared by any officer assigned to the 49th Precinct or the 43rd Precinct on the incident date (Board Review 07, 08). PO Marte was assigned to Conditions and his partner is listed as PO Resembric Altamar on the 49th Precinct Roll Call (Board Review 09). However, from 7:07 PM to 10:30 p.m., PO Altamar was processing a desk appearance ticket at the 49th Precinct stationhouse, and from 10:30 p.m. to the end of his tour at 12:35 a.m., PO Altamar was at 1340 Blondell Avenue for a precinct assignment regarding a business closing (Board Review 10). As such, the investigation has determined that PO Altamar was not working with PO Marte at the time of the incident. PO Marte had no recollection of who he was working with at the time of the incident or who responded to the scene and this information is not noted in his memo book (Board Review 11). The ICO of the 49th Precinct, Lt. Adrian Sanchez, stated that PO Marte should have noted in his memo book who his new partners were and that PO Marte's memo book is the only place that a change in partners would have been documented.
- PO Miguel Adorno and PO Jose Almonte, who were assigned to the other Conditions unit, were also working at the business closure on Blondell Avenue at the time of the incident and had no knowledge of the incident (Board Review 12, 13).

- The only black male officer assigned to the 49th Precinct who would be dressed in a white uniform on duty during Tour 3 of June 11, 2015 was Lt. Kishon Hickman (Board Review 09). Lt. Hickman was also working at the business closure on Blondell Avenue (Board Review 14) and had no knowledge of the incident. The other black male lieutenant, Lt. Cedric Green, began his tour at 11:00 p.m., which was the time that was written on the summons by PO Marte, and did not receive his first radio run until 1:25 a.m. (Board Review 15). There are no notations in Lt. Green's memo book regarding this incident. The only remaining black male officer assigned to the 49th Precinct who would be dressed in a white uniform is Cpt. Keith Walton, who is a 43-year-old black male who is 5'9" tall, weighs 190 pounds, and has black hair and brown eyes. Cpt. Walton is nine years older than the black male officer described by § 87(2)(b) and does not appear in the Tour 3 Roll Call. There are no black male officers currently assigned to the 43rd Precinct who would be dressed in a white uniform (captains, inspectors, or lieutenants) (Board Review 16).
- A warrant check was performed for § 87(2)(b) by Det. Richard Pengel of the 32nd Precinct Detective Squad on June 12, 2015 (Board Review 17). Det. Pengel was interviewed on April 5, 2016 and had no knowledge of this incident. Det. Pengel's memo book (Board Review 18) has no entries regarding this incident and indicates that he was at the 32nd Precinct stationhouse between 9:50 p.m. on June 11, 2015 and 2:00 a.m. on June 12, 2015.
- § 87(2)(g)

Allegation A – Abuse of Authority: Officers stopped § 87(2)(b)

Allegation C – Abuse of Authority: An officer drew his gun.

Allegation G – Abuse of Authority: Officers refused to provide their names to § 87(2)(b)

§ 87(2)(b) alleged that an unidentified officer in the passenger seat of the police vehicle ordered him to put his hands up and he complied. Two unidentified officers then exited the police vehicle, approached § 87(2)(b) and asked him what he was doing. The officer who was in the passenger seat of the police vehicle then allegedly drew his gun and pointed it towards the ground. Immediately prior to the officers leaving the scene, § 87(2)(b) asked the officers collectively for their names ("Can you guys give me your names?") and allegedly did not receive a response from any officer.

§ 87(2)(g)

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Allegation B – Abuse of Authority: Police Officer Joshua Marte stopped § 87(2)(b)

Allegation E – Abuse of Authority: Police Officer Joshua Marte searched § 87(2)(b)

Allegation F – Abuse of Authority: Police Officer Joshua Marte refused to provide his name to § 87(2)(b)

§ 87(2)(b) alleged that PO Marte exited the police vehicle, approached him, and asked him what he was doing. After frisking § 87(2)(b) PO Marte allegedly removed items from § 87(2)(b)'s pockets, including his cell phone, and placed them on the trunk of the police vehicle. PO Marte allegedly removed § 87(2)(b)'s identification from his wallet and gave it to another officer, who checked to see if § 87(2)(b) had any warrants. PO Marte did not ask § 87(2)(b) for his identification. The officers returned § 87(2)(b)'s property and § 87(2)(b) collectively asked the officers for their names (“Can you guys give me your names?”). The officers left the scene without responding to § 87(2)(b).

PO Marte was driving a police vehicle when he observed § 87(2)(b) smoking a lit marijuana cigarette at a bus stop. When PO Marte stopped the police vehicle near § 87(2)(b) he could smell the odor of marijuana. PO Marte stated that he believed § 87(2)(b) was smoking marijuana because of “the thick smoke and odor of marijuana” that emanated in the vicinity of § 87(2)(b). The police vehicle’s windows were open at the time. § 87(2)(b) appeared to be intoxicated because his eyes were glossy and bloodshot red. When the officers exited the police vehicle, PO Marte noticed the marijuana cigarette was no longer in § 87(2)(b)'s hands. After initially observing the marijuana cigarette in § 87(2)(b)'s hands, PO Marte lost sight of § 87(2)(b) between when he stopped the police vehicle and when he exited the police vehicle. As a result, PO Marte was not sure what § 87(2)(b) did with the marijuana cigarette. Approximately five to six seconds passed between when PO Marte initially observed § 87(2)(b) smoking marijuana and when PO Marte exited the police vehicle and noticed the marijuana cigarette was no longer in § 87(2)(b)'s hands. PO Marte approached § 87(2)(b) and requested his identification. PO Marte did not recall any other officers verbally interacting with § 87(2)(b). § 87(2)(b) retrieved his wallet and produced his identification on his own. PO Marte did not recall if he or any other officer went into § 87(2)(b)'s wallet. PO Marte did not enter § 87(2)(b)'s pockets and did not recall any other officer doing so. PO Marte did not recall any other officer removing items from § 87(2)(b)'s pockets. § 87(2)(b) denied smoking marijuana. The officers searched the area where § 87(2)(b) was standing in an effort to recover the marijuana cigarette, but they did not find anything because the area was very dark and grassy. Meanwhile, § 87(2)(b) lit and smoked a cigarette and tossed its remains towards the officers. After PO Marte gave § 87(2)(b) a summons for § 87(2)(b), § 87(2)(b) asked PO Marte for his name, and PO Marte replied verbally with his name and shield number. PO Marte did not recall if § 87(2)(b) asked for the other officers’ names, but believes § 87(2)(b) only asked for his name. § 87(2)(b) could clearly hear PO Marte’s response since he was two feet away from § 87(2)(b) when he issued § 87(2)(b) the summons. § 87(2)(b) was not charged for the alleged marijuana.

§ 87(2)(g)

Allegation D – Abuse of Authority: Police Officer Joshua Marte frisked § 87(2)(b)

§ 87(2)(b) stated that after the officers approached him and asked him what he was doing, PO Marte frisked the exterior of his pockets to feel what was inside them. PO Marte told § 87(2)(b) to lift his hands and put them on the trunk of his police vehicle, where he continued to frisk § 87(2)(b).

PO Marte noticed a bulge “sticking out” next to § 87(2)(b)’s navel. PO Marte described the bulge as “a very thick belt type going around his waist.” PO Marte noted that § 87(2)(b) was a “very slim individual,” so the bulge “stood out” and noticeably stuck out of § 87(2)(b)’s shirt. PO Marte suspected the bulge to be a knife or a gun because the size and shape of the bulge indicated such. PO Marte explained that it is known by the NYPD that individuals carry a belt on their waist and could potentially carry a gun around their stomach region. When PO Marte was asked if he could describe the dimensions of the bulge and how it was shaped, PO Marte responded, “It’s kind of hard to explain. From what I remember, it was something sticking out from his stomach; I can’t tell you exactly the dimensions.” The officers decided to pat down § 87(2)(b)’s stomach area to make sure he was not carrying a weapon. No officer frisked § 87(2)(b) anywhere else besides his stomach. PO Marte stated that there were no other bulges on § 87(2)(b)’s person. After PO Marte frisked § 87(2)(b)’s stomach area, § 87(2)(b) explained to the officers that the object the officers noticed was a religious artifact. PO Marte did not recall at what point during the encounter that he frisked § 87(2)(b).

In order to frisk an individual, an officer must have reasonable suspicion to believe that the individual is armed (People v. DeBour, 40 N.Y.2d 210 – Board Review 19).

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Squad: 9

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
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